

STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

Docket No. MH01-1094

In re Edward W. S. Handy

Hearings held at
Montpelier, Vermont
November 18, 1999
December 6, 1999
December 20, 1999
January 7, 2000

PRESENT: Lauren G. Berrizbeitia, Hearing Panel Chair
Barbara P. Anagnos, LCMHC, Ad Hoc Hearing Panel Member
Jan G. Fossum, PE, JD, Ad Hoc Hearing Panel Member
Emma J. Pudvah, Ad Hoc Hearing Panel Member
Philip W. Sharp, LCMHC, Ad Hoc Hearing Panel Member

APPEARANCES: Wendy A. Burroughs, Assistant Attorney General
Mathew Viens, Special Assistant Attorney General
for the State of Vermont

Gary D. McQuesten, Esq.
for Respondent

Edward W. S. Handy
Respondent

FINDINGS OF FACT, CONCLUSIONS OF LAW, OPINION, AND ORDER

This matter came before the Board of Allied Mental Health Practitioners (Board) on a notice of charges filed by the State against Edward W. S. Handy (respondent). Having heard the evidence on the charges, the Board has determined that the findings of fact and conclusions of law set forth below are supported by the preponderant weight of the evidence.

Findings of Fact

General Findings

1. Respondent Edward W. S. Handy is a clinical mental health counselor licensed by the Board. He holds license number 068-0000048.

2. Respondent is the managed care leader for behavioral sciences for Fletcher Allen Mental Health Services in Burlington. As such, he is in a position to control selection and payment of a panel of 227 mental health care providers in Vermont.

3. Because of his job, respondent is well-known in the mental health care community in Vermont.

4. The complaint in this case was filed with the Office of Professional Regulation (Office) in October 1994. Charges were filed in May 1999.

5. The delay in filing charges was caused in part by numerous conflicts of interest stemming from respondent's position as a managed care administrator for Fletcher Allen. All licensee-members of the Board recused themselves from this case because of conflicts of interest. The Office therefore had difficulty finding a licensed mental health professional to serve on the Investigating Committee as a reviewer for the case. The Office also had difficulty obtaining court transcripts and the services of an expert witness for the Investigating Committee. In addition, the Office case manager originally assigned to this matter had a conflict of interest, and another case manager had to be assigned. Further delay in investigation occurred when two of the four therapists referred to in Counts VI and VII of the charges moved out-of-state.

6. Respondent completed a one-year master's degree program in counseling psychology. He calls himself a psychologist and represented to the court that he was a "psychologist with the University Associates in Psychiatry" in his testimony in M. v. M.

7. Although he is not a licensed psychologist, respondent is a member of the American Psychological Association (APA). As an APA member, he is bound by the APA's Ethical Principles of Psychologists. The version of the Ethical Principles in effect at all times relevant to the allegations in the charges was the version amended June 2, 1989. The Ethical Principles set the standard of care for respondent's professional conduct in this case, particularly since he calls himself a psychologist.

8. Respondent performed child custody evaluations in the late 1980's and early 1990's. In all, he did two or three dozen child custody evaluations.

9. The role of the evaluator performing a child custody assessment is to serve as a neutral third party who assists the parents and the court in reaching a custody arrangement that is in the best interest of the children.

10. During the fall of 1992 and winter of 1993, respondent conducted a child custody evaluation to determine which parent

should be awarded custody of two children in a divorce case, M. v. M., then pending in Family Court.

11. The divorce between L.M. (defendant wife) and T.M. (plaintiff husband) was a difficult case with a lot of emotional issues. Respondent should have exercised extra caution in working on such a case.

12. As part of his evaluation, respondent filed a written child custody assessment with the Family Court in February 1993. Respondent's report recommended that custody of the M.'s two children be granted to their mother, L.M., rather than to their father, T.M.

13. In April 1993, respondent testified in Family Court about his evaluation and report in M. v. M.

14. Respondent was paid a flat fee of \$1,200 to prepare his evaluation report in M. v. M. He spent 20 to 30 hours on the case. He would have charged \$2,000 to \$3,000 if he had been billing at his hourly rate at the time (\$100 an hour).

15. Respondent's expert witness, Dr. Stunkel, charges "top dollar" (\$5,000 to \$8,000) for child custody evaluations, because a "Cadillac" job is needed to prevent later lawsuits by disgruntled parents. To the extent a clinician does a cheap evaluation, that clinician has probably increased his or her risk of being sued later.

16. An evaluator should conduct home visits with the children. A clinician cannot evaluate sufficiently by observing the children playing games in the evaluator's office.

17. Respondent did not conduct home visits with the M. children. In addition, he never observed T.M. alone with the children. This, when coupled with the flat fee charged and the incoherent nature of the report produced, indicates that respondent did a less-than-thorough evaluation in the M. v. M. case.

18. Respondent proclaimed at the December 6 hearing that he thought he had been "a little soft" on T.M. in his evaluation.

19. During the hearings before the Board, respondent rolled his eyes and grimaced at any negative testimony about himself. He had to be admonished repeatedly not to coach his witnesses. He was aggressive and bullying toward the Board during his final round of testimony on January 7 (using a loud, angry,

contemptuous tone of voice and jabbing the air with his finger).

Count I Findings

20. Respondent regularly used space at the Montpelier offices of L.M.'s attorney, John Durrance, Esq., for work.

21. He used space at Durrance's offices for the M. case and for some other cases. He also used space at Durrance's offices for psychological testing.

22. In the M. case, respondent met with the M.'s two or three times in an office down the hall from Durrance's main law office. Susan Premo, a mediator, sublet this space from Durrance, but Durrance was the lessor.

23. It was hard for L.M. to meet with respondent in the space that Premo sublet from Durrance, because that space used to be her midwife's office. She and T.M. had gone there for meetings with the midwife. L.M. had an emotional reaction to using that space for divorce-related meetings.

24. Respondent met with the M.'s there to avoid their having to go all the way to Burlington to meet with him at his office.

25. Respondent worked at the same school, Union 32 High School (U-32), as the complainant, T.M.

26. T.M. taught English at U-32. Respondent worked as the school psychologist for the Washington Central Supervisory Union, of which U-32 is a part, for two days a week. His work consisted mainly of special education assessments for the school system.

27. Respondent heard things about T.M. from some of the staff at U-32, and what he heard there about T.M. influenced his custody evaluation.

28. Respondent's daughter had the complainant, T.M., as an English teacher during the 1991-92 school year, which ended just a few months before respondent began the M.'s custody evaluation. Respondent's daughter was in T.M.'s class for the entire school year (1991-1992), except for a six-week period when the class broke up into reading groups.

29. At one point before he completed his custody evaluation, respondent overheard his daughter and her friends talking about some teachers, including some uncomplimentary

remarks about T.M. Respondent's impression was that the girls thought that T.M. was "funny (not funny ha-ha)" and an "odd duck."

30. Respondent and L.M. both grew up in St. Johnsbury, but they never met while they lived there. There is a large age difference between respondent and L.M. In addition, respondent left St. Johnsbury in 1967.

31. Respondent discussed possible conflicts of interest (e.g., the U-32 connection, the St. Johnsbury connection) with the M.'s at their first meeting but left it up to the M.'s to decide if they wanted to proceed.

32. Respondent should have been more careful about working with clients like the M.'s, because of all the points of contact.

33. It is the therapist's duty to determine if conflicts of interest exist, not the client's duty.

34. Persons subject to the APA's Ethical Principles of Psychologists make every effort to avoid dual relationships that could impair their professional judgment or increase the risk of exploitation. This is the standard of care to which respondent is held.

35. Respondent repeatedly failed to practice up to standard in the M. case when he did not avoid three significant conflicts of interest: use of office space sublet from L.M.'s attorney, undertaking the evaluation while working at the same school as T.M., and proceeding with the evaluation when his daughter had recently had T.M. as a teacher.

Count II Findings

36. As part of his custody evaluation in the M. case, respondent gave L.M. and T.M. the Myers-Briggs Type Indicator (MBTI).

37. Respondent chose the MBTI for the M. case because he wanted a tool that would test the couple's interaction.

38. The MBTI is a test used to help people improve their ability to get along with each other and to communicate, especially in business organizations.

39. The information provided by the MBTI would be helpful in custody/divorce situations, because it would help couples to

better understand how they deal with each other and their children.

40. The MBTI may be appropriate for child custody cases if it is part of a battery of tests used. It would be inappropriate if it were the only instrument used.

41. Respondent did not use just the MBTI in the M. case. He also used another test, the Sixteen Personality Factor Questionnaire (16 PF).

42. There is no test that tells which person would be the better parent for purposes of a child custody evaluation.

43. There is no standard to indicate which tests should be used in child custody evaluations.

44. Lots of child custody evaluations include no tests, because the literacy level of the parents is too low to take tests. For example, one test used in child custody evaluations, the Minnesota Multiphase Personality Inventory (MMPI), requires an eighth grade reading level to complete.

45. Because there is no standard to indicate which tests should be used in child custody evaluations, because some evaluations include no tests at all, and because respondent used the MBTI in conjunction with another test (the 16 PF), respondent did not violate the standard of care when he used the MBTI as part of his child custody evaluation in the M. case.

Count III Findings

46. However, having chosen to use the MBTI (which was not, in and of itself, a violation of the standard of care), respondent then misinterpreted the test results and reported incorrect information to the court about the results and validity of the test. (Having found in Count II above that respondent's use of the MBTI, in conjunction with the 16 PF, was not inappropriate and was not a violation of the standard of care, the Board therefore makes no findings in this count on reporting information to the court about the appropriateness of use of the MBTI.)

47. In reporting assessment results, psychologists and other mental health clinicians indicate any reservations that exist regarding validity or reliability because of the circumstances of the assessment or the inappropriateness of the norms for the person tested. Psychologists and other mental

health clinicians strive to ensure that the results of assessments and their interpretations are not misused by others. This is the standard of care.

48. At pages 5-6 of his child custody assessment, respondent discussed sources of the psychological data he obtained on T.M. As presented, this information is confusing, because respondent failed to organize or arrange it in a way to inform the court how he reached his conclusions or from what sources he drew them.

49. Respondent found T.M. to be an ENFJ personality type according to the MBTI.

50. Respondent's description of T.M. as an ENFJ was taken almost verbatim from a published profile of that personality type, "Portrait of an ENFJ."

51. However, respondent distorted a key sentence in the "Portrait" in a way that reflected adversely on T.M. The "Portrait" says that ENFJ's tend not to be domineering and are even-tempered. In his assessment, respondent characterized T.M.'s type as sometimes domineering.

52. More specifically, in transferring information from the "Portrait" to his report, respondent began to change words and subtly alter emphasis. At page 6 of his report, respondent said that T.M.'s type "often is . . . deeply devoted to their children, yet sometimes domineering."

53. By contrast, the "Portrait of an ENFJ" at page 173 of Resp. Exh. 5 says that ENFJ's are "deeply devoted to their children, yet tend not to be domineering to either the children or a mate." This is very different from what respondent wrote in his report.

54. If respondent did not quote the "not" from the "Portrait of an ENFJ" because he adjusted his report for "fake-good" responding on the 16 PF (see findings below on "fake-good" responding), then he should have explained such an adjustment in his report.

55. Respondent violated the standard of care when he skewed the interpretation of the MBTI.

56. Respondent inserted two sentences relating to the 16 PF on page 6 of his report, but a reader who was not familiar with this test would not know that the information referred to the 16

PF. Respondent did not differentiate the information in any way from the previous sentences discussing the ENFJ type (which came from the MBTI).

57. The two sentences respondent wrote about the 16 PF were confusing, ungrammatical, and virtually incomprehensible. They were filled with unexplained psychological jargon, and they failed to mention the validity problems raised by T.M.'s responses, which, in turn, would have raised doubts about the credibility and validity of the results of the MBTI for T.M.

58. Defensive or "fake-good" responding occurs when individuals undergoing psychological testing alter their responses to disguise or minimize their psychopathology. This can occur in child custody evaluations because parents seeking custody would be highly motivated to present themselves in the most favorable light.

59. The 16 PF indicated there was a high likelihood of some distortion going on in T.M.'s test answers, because T.M.'s "fake-good" score on the 16 PF was high.

60. A high "fake-good" score on the 16 PF could distort the results of the MBTI as well. Respondent should have emphasized T.M.'s high "fake-good" score on the 16 PF more in his child custody evaluation presented to the court and should have said that it could have affected the MBTI results. Respondent should have educated the court more on the impact of high "fake-good" scores.

61. Respondent used the terms "polarity" and "polar traits" without explaining what those terms mean in the context of the 16 PF. The 16 PF factors are bipolar, so that both high and low scores on the factors have meaning. This is in contrast to other frequently used tests in child custody assessments such as the MMPI, in which, typically, only the high scores have meaning.

62. Respondent also used the term "tough poise" without explaining its meaning in the context of the 16 PF. For example, a person scoring high on "tough poise" is aloof, hard, decisive, realistic and perhaps insensitive to the feelings of others. A person scoring low on "tough poise" is too easily disrupted by his or her emotions, may be artistic, and may not be carefully controlled by reality. Respondent explained none of this.

63. Respondent began his two sentences about the 16 PF abruptly by talking about "second order scores." He never explained what "second order scores" are, even though, in the 16

PF, second-order factors are very important and describe broader aspects of human personality than do the original 16 factors that the developer of the test extracted from his research.

64. Karson and O'Dell, in Resp. Exh. 21 at 546-548, explain what is entailed in a thorough interpretation and presentation of a 16 PF profile. Respondent's two sentences fell far short of their method.

65. Respondent's presentation at pages 5-6 of his report of the results of his psychological testing of T.M. are a jumble of unexplained terms and professional jargon in relation to the 16 PF and contain at least one major distortion of information in relation to T.M.'s MBTI personality type.

66. The net result for any reader (in this case, the court) without training in psychological testing is confusion and misinformation.

67. Even respondent's expert, Dr. Stunkel, admitted that respondent's clinical summary paragraph in his report at pages 5-6 was confusing and unclear as to what data bases respondent was using and what he was interpreting in any given sentence.

68. Respondent's report to the court presented the test data from the MBTI and the 16 PF as though it buttressed his observations and impressions from personal interviews, when, in fact, the data did not do so. For example, the ENFJ description from the "Portrait" did not support what respondent said about T.M. in his report.

69. Respondent should not have relied on paper-and-pencil tests such as the MBTI so heavily, especially in light of T.M.'s high "fake-good" scores on the 16 PF.

70. Respondent's report was virtually "laid upon the back" of the MBTI and elevated supposed results to hard evidence. Forensic evaluation requires a higher standard.

71. Respondent also failed to discuss the strengths and weaknesses of the tests he used. This was an important gap in the report, because all personality tests have both strong and weak points. An evaluator must be honest with the court and tell the court that these instruments are not perfect.

72. This is especially true in forensic work, because there is no one good test for child custody evaluations. Therefore, it is important to address a test's flaws in any report to the

court.

73. Furthermore, self-reporting inventories (such as the MBTI) are good only to the extent the test-taker is honest and has good self-insights. Respondent explained none of this to the court.

74. In addition to respondent's failure to mention and explain validity issues in his report, there were other problems with respondent's findings that could have misled the court.

75. Respondent's description of L.M. in the evaluation was much more positive than that of T.M., although L.M.'s test results indicated more problems with L.M. than T.M.'s test results did with T.M. It appears as though respondent's meetings with L.M. and T.M. left him with a more positive impression of L.M. than of T.M. Respondent then tried to support his observations with the test results.

76. Respondent distorted the personality profiles of T.M. and L.M. He selected bits and pieces of interpretive sources and used only those he wanted. He seemed to select characteristics unflattering to T.M. and more flattering to L.M.

77. For example, when respondent testified about idealism in relation to T.M., Resp. Exh. 17 at 422-423, he cast the attribute in a negative light. When respondent testified about idealism in relation to L.M., id. at 432, he cast that attribute in a positive light.

78. Respondent's failure to uphold the standard of care is a gross failure, because composition of his report and subsequent court testimony about the report showed more than a mere error of judgment, momentary inattention, or loss of presence of mind. Preparation of his report and testimony required time and deliberate thought, followed by, in the case of the report, committing those thoughts to paper, in writing.

Count IV Findings

79. The M. case was complex, and respondent "was in over his head," as illustrated by his extremely cursory and confusing discussion of the 16 PF in his report to the court.

80. As found above, respondent also misinterpreted the MBTI results and reported incorrect information to the court about the results and validity of the MBTI.

81. However, there is no evidence that respondent misinterpreted the MBTI results and reported incorrect information about the MBTI results intentionally or by design. He was attempting to function beyond his capability in matters of psychological testing. This was further complicated by the less-than-thorough nature of the evaluation he provided.

Count V Findings

82. During the child custody evaluation, respondent met with L.M., T.M., and the children in various combinations, but he never met with just T.M. and the children.

83. An attempt to arrange a meeting among respondent, T.M., and the children was made indirectly when John Durrance, Esq., (L.M.'s attorney) wrote to L.M. Durrance told L.M. in the letter that he was using the letter as notice to T.M.'s attorney (Alan Rome, Esq.) that a meeting among respondent, T.M., and the children has been scheduled. Durrance sent a copy of the letter to Rome.

84. Such notice was ineffective, because T.M. never heard about the scheduled meeting and did not meet with respondent and the children.

85. The standard of care is that a child custody evaluator should observe each parent separately interacting with the children at least once.

86. Respondent had a duty to make sure that he met with T.M. and the children without L.M. being present. This duty was especially great in the M. case in view of how his evaluation was going to turn out (i.e., with a recommendation that L.M. be the custodial parent).

87. Respondent should have at least attempted to be fair by meeting with T.M. and the children. He could not discharge his duty by allowing arrangements for such a meeting to be made solely by an indirect and ineffective method of communication. He should have made sure himself that the meeting was scheduled and should have seen to it that the meeting actually took place as an integral part of his custody evaluation.

88. By not meeting with T.M. and the children, respondent grossly failed to uphold the standard of care. His failure in this regard showed indifference to the duty he owed the M. family and the court.

Count VI Findings

89. In April 1993, respondent testified about his evaluation at the M.'s divorce/custody hearing in Washington Family Court.

90. Respondent testified that, as part of his evaluation, he acquired information from third party informants to support the accuracy of his assessment.

91. Specifically, respondent testified that he acquired information from four mental health clinicians in the Central Vermont area who had been involved with the M. family.

92. One of the four clinicians, Anne Unangst, has no recollection of being contacted by respondent about the M. case but cannot say for certain that she did not talk to him about it.

93. Another of the four clinicians, Robert Buchicchio, did have some contact with respondent when respondent referred L.M. and T.M. to him for couples counseling. Buchicchio later had a brief exchange with respondent to report that, after two sessions with L.M. and T.M., he had no input to contribute on decisions relating to child custody.

94. Another of the four clinicians, Lynn Phillips, has no specific recollection of being contacted by respondent about the M. case but cannot say for certain that such contact did not occur.

95. The only evidence relating to the fourth clinician, Brian Lewis, is respondent's recollection that he did contact Lewis and respondent's undated handwritten note indicating that he talked to Lewis by phone about T.M. Lewis did not testify in this proceeding and did not provide any written information about his contact with respondent regarding the M. case.

96. The evidence is inconclusive on this count. Two of the four clinicians do not clearly remember whether they did or did not discuss the M. case with respondent. The third clinician does recall that he did not provide any input on child custody matters. The fourth clinician did not provide any information at all in this proceeding, leaving respondent's testimony and note as the only evidence in the record.

Count VII Findings

97. In his report to the Family Court, respondent indicated

that he had received information from third party informants.

98. In his court testimony, respondent elaborated that he acquired information from third party informants to support the accuracy of his assessment, in particular his personality profile of T.M.

99. Respondent also told the court that he obtained information supporting his personality profile of T.M. from four mental health clinicians in the Central Vermont area who had been involved with the M. family.

100. The next question posed to respondent, when combined with his answer, indicated further that the four clinicians described T.M. in a way that fit with respondent's personality profile of T.M. and that the profile was very accurate when checked against the information provided by the four clinicians.

101. The impression given by respondent's report and testimony is that his personality profile of T.M. was firmly supported by four other mental health care professionals.

102. The impression is misleading. Two of the four clinicians cannot remember for certain whether they discussed the M. case with respondent. One of the four (Buchicchio) specifically remembers that he provided no input on child custody issues. The only evidence relating to the fourth clinician (Lewis) is respondent's undated note indicating that he had a phone conversation with Lewis about T.M. The note is too brief to indicate whether Lewis supported respondent's personality profile of T.M.

103. Courts in Vermont rely heavily upon child custody evaluation reports and accompanying testimony of the evaluators, because such evaluations and expert testimony save the courts much time and effort in making difficult decisions regarding custody of children of divorcing parents.

104. Because Vermont courts rely heavily upon the information so presented to them, evaluators must scrupulously avoid skewing or misrepresenting the information in their reports in any way. This is the standard of care.

105. For respondent to have presented misleading information about the extent and nature of support from other clinicians in his sworn testimony in court is a gross violation of the standard of care. Respondent's actions were more than a mere error of judgment, momentary inattention, or loss of presence of mind. He stated in his report that he had obtained

information from third party informants, then he elaborated on the point when testifying by presenting misleading information about the nature and extent of support provided by the four clinicians. He did this after having been sworn to tell the truth.

Count VIII Findings

106. At the M. divorce/custody hearing, respondent was asked in relation to T.M., "And were you advised of any incidents within the school that indicate inflexibility or dominance by him?"

107. Respondent answered, "Throughout Mr. [M.'s] teaching career there have been some incidents that the school would document as being somewhat rigid in interpretation on his part, yes." The examiner did not ask for any further elaboration but went on to another topic.

108. Respondent's answer to the question was incorrect and misleading. A reasonable person listening to the question and answer would infer that respondent had reviewed documents while they were in school files and that the incidents occurred over a considerable period of time. The cumulative effect on the listener would be an impression that the incidents were numerous and substantial.

109. What actually happened was that respondent was advised of some difficulties T.M. had had with a special education student over a recycling program matter, but respondent was told that by L.M., and L.M. heard it from T.M.

110. L.M. was not a third party informant, which was what the questioner inquired about, but rather was the defendant in the M. divorce action.

111. The documentation respondent was referring to in his testimony was in T.M.'s school personnel file. It consisted of two letters, both dated in 1991.

112. The first letter, dated January 30, 1991, was from T.M. to the U-32 principal. In the letter, T.M. alluded to attempted resolution of the problems he had had with the special education student, outlined three concerns needing further discussion, and concluded that he hoped the matter could be resolved amicably and promptly.

113. The second letter, dated August 19, 1991, was another

letter from T.M. to the U-32 principal. In the letter, T.M. informed the principal that he was going to take a less active role in the school recycling program during the next school year. T.M. suggested alternatives for continuing the program and thanked the principal for his support of the program.

114. These two letters from 1991 cannot reasonably be interpreted to constitute incidents extending throughout T.M.'s 20-year teaching career.

115. In addition, these were letters that T.M. wrote to the school himself and were not negative evaluations that someone else had submitted for inclusion in T.M.'s personnel file.

116. Respondent's misleading testimony was willful (i.e., intentional or by design), because he was testifying under oath in court as an expert about his work product. His remarks were deliberate and were not spontaneous utterances made under duress or surprise.

Count IX Findings

117. Respondent did not obtain information about T.M.'s teaching career by examining T.M.'s school personnel file.

118. Instead, respondent obtained information second-hand, from other sources. In particular, respondent received information about T.M.'s teaching career from L.M., who was not a neutral, disinterested person. L.M. was the defendant in the M. v. M. divorce action.

119. Furthermore, by the time respondent testified in court, he had received a long letter from T.M. that was highly critical of respondent's conclusions and recommendation that L.M. be granted custody of the M. children. A reasonable conclusion to draw from this would be that respondent was somewhat antipathetic to T.M. by the time of the court hearing.

120. During his testimony in court, respondent further embellished the notion of T.M.'s rigidity by emphasizing that when disagreed with, T.M. "becomes less flexible." In response to questioning, respondent further opined that this personality characteristic made it difficult for T.M. to cooperate with L.M.

121. Respondent's testimony was misleading, because it distorted the information respondent obtained about T.M.'s teaching career and then inflated the accuracy and reliability of that information by expanding it into a general personality characteristic.

122. Courts in Vermont rely heavily upon child custody evaluation reports and accompanying testimony of the evaluators, because such evaluations and expert testimony save the courts much time and effort in making difficult decisions regarding custody of children of divorcing parents.

123. Because Vermont courts rely heavily upon the information so presented to them, evaluators must be extremely careful to present accurate information to the courts and to clarify and explain precisely where and how they obtained the information they present.

124. As practitioners, psychologists know that they bear a heavy social responsibility because their recommendations and professional actions may alter the lives of others. They are alert to personal, social, organizational, financial, or political situations and pressures that might lead to misuse of their influence.

125. This ethical principle translates into a standard of care that prohibits the provision of misleading or distorted information in a child custody evaluation that may alter the lives of others and where the influence of the evaluator's opinion on the court may be considerable.

126. For respondent to have presented misleading information about the sources of his information in his sworn testimony in court is a gross violation of the standard of care. Respondent's actions were more than a mere error of judgment, momentary inattention, or loss of presence of mind. As an expert witness, he had time to prepare, review, and reflect upon his testimony before the hearing. His embellishment of his evaluation methodology was a distortion of the truth.

Count X Findings

127. Count X is a "catch-all" count designed to ensure that a tribunal finds at least a repeated violation of the standard of care.

128. In light of the violations which the Board did find in other counts, Count X is surplusage and should be dismissed.

Conclusions of Law

A. (Count I(1)-(3)) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. §

129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he failed to use and exercise on repeated occasions that degree of care, skill and proficiency which is commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

B. (Count III) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he grossly failed to use and exercise on a particular occasion that degree of care, skill and proficiency which is commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

C. (Count V) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he grossly failed to use and exercise on a particular occasion that degree of care, skill and proficiency which is commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

D. (Count VII) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he grossly failed to use and exercise on a particular occasion that degree of care, skill and proficiency which is commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

E. (Count VIII) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(7) (formerly 26 V.S.A. § 3271(b)(2)), in that he willfully made or filed false reports or records in the practice of the profession.

F. (Count IX) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he grossly failed to use and exercise on a particular occasion that degree of care, skill and proficiency which is

commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

Opinion

Prehearing Motions

Respondent's First Motion to Dismiss

Prior to hearing, respondent filed three motions to dismiss and an objection to amended charges. The first motion to dismiss alleged that the State cited the wrong statutes in its notice of charges. The State amended the charges to correct the problem, and this motion to dismiss was denied by an entry regarding motion dated July 6, 1999.

Respondent's Second Motion to Dismiss (Laches)

Respondent's second motion to dismiss all charges raised the defense of laches, arguing that the length of time between the filing of the complaint (October 1994) and the filing of charges (May 1999) was unreasonably long and resulted in witness inability to reconstruct exact conversations at hearing.

Respondent, as the party asserting laches, has the burden of proof on the issue. See Turner v. Turner, 131 Vt. 253, 257, 305 A.2d 592 (1973). Respondent must prove not only that there was an unreasonable and inexcusable delay, but also that the delay disadvantaged him. Id. Respondent has not proved either prong of the test.

The facts show that the delay between complaint and charges was unavoidable. Because respondent is well-known throughout the Vermont mental health care community, Board members who would customarily serve on either the Investigating Committee or the Hearing Panel recused themselves. Replacements who did not know respondent had to be found. Some of the witnesses moved out of the state. Transcripts had to be obtained from the M.'s divorce proceeding in court. All of these circumstances added time to the investigation of this already complex case.

The delay did not significantly affect the state of the documentary evidence needed for this proceeding. Because the complaint was filed within two years of respondent's completion of the M. custody evaluation, respondent had notice fairly soon after completing his work on the evaluation that there would be a

need to produce records and documentation to defend against the complaint. Thus, respondent's records of the M. custody evaluation were available to the parties in this case, as were court transcripts and school records.

The unavoidable delay in filing charges meant that respondent had to wait in suspense for approximately five years to see exactly how the charges against him would read. During this time, the investigation of his case remained confidential under 3 V.S.A. § 131(c)(2)(B). Other than having to live for five years in suspense about the outcome of the investigation, respondent pointed to no way in which the delay disadvantaged him. He did not show that his professional reputation suffered or that he lost his job, family, friends, or life savings because of the lengthy investigation this case entailed.

The only witnesses whose recollection of events surrounding respondent's custody evaluation were significantly dimmed by the passage of time were several of the mental health professionals who were the focus of Count VI in the charges. However, the outcome of this matter does not hinge on their testimony. Since the Board does not find the allegations of Count VI proved, the inability of these witnesses to remember events in 1992-93 does not work to respondent's disadvantage in this case.

Respondent's Third Motion to Dismiss

Respondent's third motion to dismiss argued that the State's expert witness (Dr. Levine) was unprepared or unwilling to offer an opinion supporting the charges.

Regardless of whether or not it heard expert witness testimony, "[a]s a body composed primarily of . . . professionals, the Board has the power to apply its own expertise in evaluating the evidence." Braun v. Board of Dental Examiners, 167 Vt. 110, 115, 702 A.2d 124 (1997). In any event, Dr. Levine did offer testimony at hearing relating to the standard of care in child custody evaluations, opining, among other things, that respondent violated the standard of care by skewing his interpretations of the MBTI and that his two-sentence remarks about results of another test (the 16 PF) in his evaluation report fell below the standard of care.

Respondent's Objection to Amended Charges

Respondent's objection to amended charges argued that the charges were filed too close in time to the November 18 hearing to permit him to respond adequately. The Board heard argument on

this objection at the November 18 hearing, deliberated, and denied the objection.

Under Office of Professional Regulation Administrative Rules of Practice 3.6(F), amendments may be allowed if they do not unreasonably adversely affect the rights of a party. In this case, the amendments to the charges did not require additional witnesses or extensive additional preparation to defend. The number of counts increased from six to ten, with Count X being a "catch-all" count summarizing all previous counts.

The modifications to the other counts primarily involved two types of changes: (1) insertion of language to include both the gross and repeated aspects of violations of the standard of care under the statute, or (2) adding counts to charge under a different statute facts already alleged (akin to the practice of multiplicity in criminal prosecution). Because the substance of the charges did not change substantially from May 1999, when the original charges were filed, to the November filing of the second amended charges, the Board determined that respondent was not unreasonably adversely affected by the amendments and denied the objection.

Hearing

The statutory standard of care in a professional licensing case has been definitively set forth in Braun v. Board of Dental Examiners, 167 Vt. 110, 702 A.2d 124 (1997). In Braun, the Court stressed that "grossly negligent conduct is more than a mere error of judgment, momentary inattention, or loss of presence of mind. . . . Rather, it is the failure to exercise even a slight degree of care and an indifference to the duty owed." Id. at 113-114 (citations omitted).

The Court went on to note, "We have acknowledged, however, that there is no clear dividing line between ordinary and gross negligence; whether certain behavior was grossly negligent hinges on the particular circumstances of the case. . . . Because such a finding requires applying the facts to a reasonableness standard, we defer to the fact finder's ability to determine whether particular behavior rose to the level of gross negligence." Id. at 114 (citations omitted).

Here, the inescapable conclusion to be drawn from the facts is that respondent's child custody evaluation in M. v. M. grossly violated the standard of care. Respondent's written report and court testimony were not done on the spur of the moment. They were prepared and delivered in written (report) and oral

(testimony) form after respondent had the time and opportunity to reflect on what he would say, on what information he would convey, and on how he would convey it. For him to provide misleading information as he did was a betrayal of the trust his clients and the court placed in him.

The Court has defined "willful" as denoting "intention and that that means 'by design.'" State v. Parenteau, 153 Vt. 123, 125, 569 A.2d 477 (1989).

In this case, respondent's misconduct was willful when he created the misleading impression in his court testimony that he had examined T.M.'s school personnel files and thereby cloaked his evaluation with an enhanced aura of authority. Again, respondent's testimony was not given off-the-cuff. He had already prepared a written report, and he had time to prepare for and reflect upon the testimony he would give in court several months later. The questions he was asked were not a surprise to him. He had done dozens of other child custody evaluations and was not a neophyte. He chose his words intentionally and by design, and they were misleading.

As a child custody evaluator, respondent had a special duty to testify and evaluate with scrupulous care before the court. The obligation was increased by the entanglements found in Count I. Respondent should have been extra careful in this case in preparing his report and testimony. He was not.

He undertook the evaluation despite several dual relationships inherent in the case (meeting with the clients in office space leased by the attorney of the defendant wife, working at the same school as the plaintiff husband, his daughter having had the plaintiff husband as a teacher). Rather than exercising his own professional judgment, respondent left it up to the M.'s to decide whether to proceed with the evaluation. Pushing this responsibility onto his clients was a failure to uphold professional ethical standards and made a difficult situation for the M.'s more painful.

In addition, respondent was not careful to pursue a completely impartial approach in his evaluation. For example, he did not make sure that he observed T.M. alone with the children, as he did with L.M.

Even more disturbing, he subtly distorted information to leave inaccurate implications when he testified in court. He implied in his testimony that he had seen school documents when he had not. He testified in court about receiving information

from third party informants in a manner that exaggerated the amount and extent of support that information provided for his conclusions. In short, he acted in a way that was not accountable to his client's or the court's trust in him.

Finally, in assessing respondent's credibility and determining what weight to give his testimony, the Board takes into account respondent's attitude and demeanor throughout the proceedings. In evaluating credibility, the Board may consider such factors as demeanor, mannerisms, and tone of voice, in addition to the quality of the testimony itself. In re Annette Lynch, M.D., No. AO-MP01-0896 (Vt. Sec. of State, Appellate Officer, Jan. 16, 1998) at 17 (citing State v. Hagen, 151 Vt. 64, 65, 557 A.2d 493 (1989)).

Respondent's arrogance was astounding. He never acted as though he understood that it was possible that he might have erred in any way. (Indeed, he proclaimed at the December 6 hearing that he thought he had been "a little soft" on T.M. in his evaluation.) He rolled his eyes and grimaced at any negative testimony about himself. He had to be admonished repeatedly not to coach his witnesses. He was aggressive and bullying toward the Board during his final round of testimony on January 7 (using a loud, angry, contemptuous tone of voice and jabbing the air with his finger). His words and bearing throughout the hearings clearly communicated to all that he thought the proceedings were a farce. Such behavior reflects poorly on his ability to conduct himself in an ethical and professional manner and has a negative impact on his credibility and on the weight of his testimony.

Order

IT IS HEREBY ORDERED by the Board of Allied Mental Health Practitioners of the State of Vermont that:

1. Respondent's motion to dismiss on grounds of laches is hereby DENIED.
2. On the basis of the findings of fact and conclusions of law, Counts I(4), II, IV, VI, and X are hereby DISMISSED.
3. On the basis of the findings of fact and conclusions of law, respondent's license is hereby SUSPENDED for a period of six months from the effective date of this order.
4. On the basis of the findings of fact and conclusions of law, respondent's license is hereby CONDITIONED as follows:

(a) Within one year from the effective date of this order, respondent shall successfully complete, in a didactic setting, a graduate-level course in professional ethics, approved by the Board or its designee, and shall furnish proof of successful course completion to the Board.

(b) For a period of three years from the effective date of this order, any child custody evaluations which respondent undertakes must be performed under the supervision of a practitioner licensed at the psychologist-doctoral level and with substantial experience in child custody evaluations for courts.

5. The conditions imposed by this order shall remain in effect until removed by the Board. Violation of any of the conditions imposed by this order may result in further discipline, including revocation of respondent's license.

6. Respondent shall bear all costs of compliance with this order.

7. Pursuant to 3 V.S.A. §§ 129(a)(8) and 131(c)(2)(C), this document is a public record and may be provided to other licensing authorities.

8. This order takes effect as of the date of entry shown below.

Appeal Rights

This is a final administrative determination. A party may appeal by filing a written notice of appeal with the Director of the Office of Professional Regulation, Office of the Secretary of State, within 30 days of the effective date of this order.

Dated: 3/10/00

BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

By: Lauren G. Berrizbestia
Lauren G. Berrizbestia
Hearing Panel Chair

Date of entry: 3-13-00